

The Role of The Justice of The Peace With Reference to the Police

Created by Norman Heywood
Superintendent of Police

Overview

- A Justice of the Peace (JP) is a person of unquestionable integrity, who seeks to promote and protect the rights of the individual and helps to give justice to those persons in a particular community.
- The service provided by the JP is wide and covers areas outside of the special relationship that should exist between the JP and the Police

- The Justice of the Peace is a part of the overall justice system, which is a set of legal and social institutions designed to enforce the law, both criminal and civil in accordance with a defined set of procedural rules and limitations, these includes:
 - The Police and other law enforcement agencies and regulators
 - Courts (Judges, JPS)
 - Director of Public Prosecution
 - Office of the Public Defender

- Correctional Services
- Public and Private persons such as Attorney at Law (Private/ Public Bar)
- Members of the various communities

While each institution and actors has their own goals and objectives, everyone should be working towards the goals and priorities of the system as a whole;

"Justice for All"

- Partnership between the JP and the Police within the Justice System should not be based on personal relationships, but on necessity to make the system work in a fair and impartial manner, where justice is not only done but manifestly appears to be done.

Justice of the Peace / Police Interface

✓ Petty Session Court

A JP hears and determines complaints brought by citizens and the police against other citizens. (Complaints must originate in the parish in which the court sits)

✓ **Issues Summons and Warrants**

The Police will from time to time request the issuing of summons for persons to appear in court at a particular time and place.

▪ **Warrants**

(a) **Arrest**

(b) **Search**

- Arrest warrants are issued to arrest any person who on **reasonable** grounds is believed to have committed a criminal offence.
- Search Warrants are issued to the Police to search premises believed to contain illegal goods or wanted persons
- Section 72 of the Proceeds of crime act gives the JP the power to issue warrant to members of the JCF or revenue officers to enter premises and seize cash believed to be used in money laundering or connected to any crime under the act.

Section 76 (POCA) Allows the JP to exercise the power of the Resident Magistrate in making an order extending the period of time for cash seized beyond 72 hours.

Do Not Sign Blank Warrants

✓ Bail Applications

Justice of the Peace are sometimes ask to consider bail for persons who have been arrested and are in police custody.

What should you consider before granting bail?**1. Entitlement for bail**

Section 3 sub section 1 of the bail Act

"Subject to the provisions of this Act, every person who is charged with an offence shall be entitled to be granted bail by the court, a Justice of the Peace or a Police Officer, as the case may require"

(2) A person who is charged with an offence shall not be held in custody for longer than twenty four hours without the question of bail being considered.

(3) Subject to section (4) Bail shall be granted to a defendant who is charged with an offence which is not punishment with imprisonment.

(4) A person charged with murder, treason or treason felony may be granted bail only by a Resident Magistrate or a judge.

✓ Denial of Bail

• Section 4(1)

Bail may be denied under the following circumstances;

(1) The court, a Justice of the Peace or Police Officer is satisfied that there are substantial grounds for believing that the defendant, if released on bail would:

- I. Fail to surrender to custody;
- II. Commit an offence while on bail; or
- III. Interfere with witnesses or otherwise obstruct the course of justice, whether in relation to himself or any other person

✓ **Identification Parade**

- Justices of the Peace are often called upon to observe identification parades. Their role at these parades is to ensure that all the laid down procedures are followed.
- One suspect x 8 volunteers (minimum)
- Two suspects x 12 volunteers (minimum)
- Similar height, complexion, age & social standings
- Listen to the instructions given by the person conducting the parade

Who May be Presented at Identification Parade

1. An Attorney at Law
2. A Justice of the Peace

Where no Attorney is available, the Identification Parade should be postponed once and if on the date set for the postponed Identification Parade, an Attorney at Law does not attend but a Justice of the Peace is present, the Identification Parade may be held in the absence of the Attorney at Law. **It is advisable for the postponed Identification Parade that two Justices of the Peace should be present.**

3. Where the suspect is under 17 years, his parents, guardian should be informed of the holding of the parade and be invited to be present. If neither PARENT, or GUARDIAN or Attorney is present (or if not practicable for one of these to attend) another adult not being a Police Officer may be present.

Rules

Neither Attorney at Law nor Justice of the Peace, when present at the Parade shall speak to any witness or to any person, other than the accused being paraded

- The police in charged of the parade should always be an Officer or sub- Officer of no lower rank than Sergeant
- All unauthorized persons should be strictly excluded from the area where the Identification Parade is held

✓ **Cordon and Curfew**

- Under the Constabulary Force (Interim Provisions for arrest and detention) Act.

Sunshine Legislation of 2010 valid for one year

- Persons arrested under the provision of this act must be taken before a Justice of the Peace, who upon satisfying his/herself of the circumstances under which the detention took place, may remand the prisoner for up to 72 hours, before going before the court. After 5 days the detainee MUST be taken before the court


